

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406332	OWENS VS BOMBARDIER RECREATIONAL PRODUCTS INC.	MOTION TO SET ASIDE DISMISSAL

Tentative Ruling:

The plaintiff's motion for relief from dismissal is granted. The dismissal filed 3-2-26 is vacated.

All parties and their attorneys of record are ordered to appear on 8-24-26 at 8:30 A.M. in Department 5 to show cause, if any, why the action should not be dismissed pursuant to the 2025 settlement.

If the case has not been voluntarily dismissed prior to that date, then plaintiff's counsel shall file both a declaration in response to the OSC and a motion for determination of attorney's fees not later than 8-17-26.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502987	WHITELEY VS HARLEY- DAVIDSON MOTOR COMPANY, INC.	MOTION TO COMPEL MOTION TO (1) COMPEL PLAINTIFF'S DEPOSITION AND (2) STAY OTHER DEPOSITIONS PENDING COMPLETION OF PLAINTIFF'S DEPOSITION

Tentative Ruling:

The defendants' request for judicial notice is denied.

The supplemental declaration of Smock, filed with the defendants' reply, is not considered.

The defendants' motion to compel is granted in part and denied in part. Specifically, their request for an order requiring Plaintiff to appear for her deposition within two weeks of the Court's Order is denied.

The defendants' request for an order staying all other depositions in this action pending the completion of Plaintiff's deposition is denied.

The defendants' request for an order awarding Defendants their reasonable costs of \$2,910.50 to bring this motion is granted.

The plaintiff's request for sanctions is denied.

Analysis:

The request for judicial notice concerns an order in a different action between different parties in which various lawyers from the law firm representing the plaintiff were found to have violated that court's orders. It is irrelevant to the issues presented by this motion. The request is denied on that basis.

Evidence submitted with a reply is untimely and generally is not considered.

The request to compel the plaintiff to appear for her deposition is moot, because she appeared while the motion was pending.

The request for a stay of all other depositions until the plaintiff's deposition is completed is overbroad, because not all defendants have joined in the motion. More importantly, "the methods of discovery may be used in any sequence, and the fact that a party is conducting discovery, whether by deposition or another method, shall not operate to delay the discovery of any other party." (C.C.P., § 2019.020(a).) While the Court may establish a sequence for good cause, the defendants have not established good cause for staying all depositions of all other witnesses.

Although the plaintiff has now appeared for the first day of her deposition, it appears that the deposition would not have occurred had the motion not been filed. The sum of \$2,910.50 is reasonable. A deponent who refuses to respond to multiple requests for available dates for her deposition and refuses to appear on the date on which the deposition is ultimately noticed is not acting with substantial justification.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2504557	JONES VS JONES	MOTION TO COMPEL

Tentative Ruling:

The defendant's motion to compel the plaintiff's responses to the defendant's request for production of documents, set one, is off calendar.

Analysis:

At the hearing on the motion on 5-26-2026, the Court continued the hearing to 6-22-26 and ordered the parties "to meet and confer, either in person, by telephone, or by video conference, within ten (10) days, regarding any issues remaining in dispute following Plaintiff's post-filing supplemental production, and to address the concerns identified in this order. No later than ten (10) days before the continued hearing date, the parties